SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Criminal) No. 194 of 2017 **CNR: SCIN010001942017**

Date of Pronouncement: 27 September, 2018 *Citation: (2019) 3 SCC 39*

CORAM: Hon'ble Dipak Misra, C.J., R.F. Nariman, A.M. Khanwilkar, D.Y. Chandrachud,

Petitioner / Appellant: Joseph Shine

- VERSUS -

Respondent / State: Union of India

SUBJECT: CRIMINAL LAW & GENDER JUSTICE **AUTHORITY: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Section 497 IPC deprives woman of agency, autonomy, and dignity by viewing her through the lens of patriarchal proprietary control. Criminalizing adultery violates constitutional guarantees of equality and personal liberty.

STATUTORY PROVISIONS INTERPRETED: Section 497 IPC, Section 198(2) CrPC, Article 14, Article 15, Article 21

FINAL DISPOSITION: SECTION 497 IPC & SECTION 198(2) CRPC DECLARED UNCONSTITUTIONAL

EXECUTIVE SUMMARY:

Constitution Bench unanimously struck down Section 497 IPC (adultery) as archaic, patriarchal, and violative of Articles 14, 15 and 21. Adultery remains a civil ground for divorce but ceases to be a criminal offence.

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